

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,483.

Plaintiff to file order on Motion, as well as submit Judgment.

**3. 9:00 AM CASE NUMBER: L24-11721  
CASE NAME: CRESER CAPITAL FUND VS. MICHELLE FRANCIS  
MOTION TO BE RELIEVED AS COUNSEL FILED BY JULIA A. CLAYTON (DEF'S COUNSEL) ON  
04/01/2026**

**FILED BY:**

**\*TENTATIVE RULING:\***

Counsel for Defendant filed a Motion to be relieved. Counsel has indicated that the reasons are confidential.

**Disposition**

The court will conduct an in camera hearing with counsel on 9/1/26, at 9am.

**4. 9:00 AM CASE NUMBER: L25-00296  
CASE NAME: JEFFERSON CAPITAL SYSTEMS LLC VS. DEBORAH WILLIAMS  
FOR ENTERING JUDGMENT PURSUANT TO DEFENDANTS DEFAULT UNDER SETTLEMENT AND  
RELEASE AGREEMENT**

**FILED BY: JEFFERSON CAPITAL SYSTEMS LLC**

**\*TENTATIVE RULING:\***

Background

Plaintiff filed, on 5/19/26, a Motion to enter judgment pursuant to stipulation, along with a Declaration. The papers were served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint and Summons in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$3,749.98, less any credits for payments received.

Defendant made total payments in the amount of \$79; costs, per Declaration, are 340.96; thus, the

judgment amount should be \$4,011.94.

The Stipulation was filed on 6/23/26.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,011.94.

Plaintiff to file order on Motion, as well as submit Judgment.

**5. 9:00 AM CASE NUMBER: L25-03749**  
**CASE NAME: BRIAN BURNETT VS. KILLARNEY PROPERTIES**  
**STRIKE DEFENDANT'S LATE ANSWER**  
**FILED BY: BURNETT, BRIAN**

**\*TENTATIVE RULING:\***

Plaintiff has filed a Motion to Strike the Answer of Defendant because it was late.

Defendant, in their Response, contends that the late filing occurred only after a good faith attempt to file within the appropriate time period was rejected for a minor error.

Plaintiff filed a Reply in which he essentially argues that a late filing is a late filing.

**Background**

This court granted leave to Defendant, on 4/14/26, to file an Answer to the Complaint within 10 days, after setting aside entry of default and default judgment.

Defendant formally filed their Answer on 5/7/26, the filing of which this court takes judicial notice.

In the Response, counsel for Defendant declares that he attempted to file the Answer on 4/21/26, but it was rejected because of form errors. Specifically, the exhibit reflects that the Court Clerk rejected the Answer on 4/21/26 because the Answer apparently did not indicate that it was an answer to an amended complaint; and because counsel mistakenly indicated that the Defendant was self-represented.

This court also notes that Defendant provided a proposed Answer in their Motion to Set Aside, filed on 1/28/26.

**Analysis**

Section 473(a)(1) of the CCP permits a court to extend the term for a party to file an Answer, in the furtherance of justice.

The facts of the instant matter fall squarely within the spirit of this statute. Defendant clearly attempted in good faith to follow the court's instructions. The reasons Defendant was unsuccessful